Dev Anand

From: Dev Anand <dev.anand@varnholt-aero.example>
Sent: 18 June 2024 11:02
To: Rhiannon Thorne <rhiannon.thorne@varnholt-aero.example>
Subject: FW: Bay 3 - full chain for the file

Rhiannon - as asked, all the Bay 3 emails below printed in date order for the file, incl. my note of Gary's call on 30/4. Hard copy on your desk. Still nothing from QRL with the clause 11.4 particulars btw.

D

From: Rhiannon Thorne <rhiannon.thorne@varnholt-aero.example>
Sent: 14 March 2024 10:12
To: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Cc: Dev Anand <dev.anand@varnholt-aero.example>; Craig Mellor <craig.mellor@varnholt-aero.example>
Subject: Bay 3 - slab pour and handover programme

Gary,

Craig confirms the Bay 3 slab pour (Cell 4-6 footprints and the walkway) is now booked for Monday 18 March, weather permitting for the pump access. That gives us 42 days to the 29 April Site Readiness Date - comfortably over the 28 days in Sch 5 para 2.2(b).

Can you confirm QR-FD-0412 rev B is still the current foundation drawing and the anchor layout hasn't changed? Craig's contractor is setting out off rev B.

Thanks
Rhiannon

Rhiannon Thorne | Head of Manufacturing Engineering
Varnholt Aerostructures Ltd | Sinfin Lane Works, Calloway Road, Derby DE24 9GN | T 01632 960214 ext 2207
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From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 15 March 2024 08:47
To: Rhiannon Thorne <rhiannon.thorne@varnholt-aero.example>
Cc: Dev Anand; Craig Mellor; Kieran Doyle <k.doyle@quellcrest-robotics.example>
Subject: RE: Bay 3 - slab pour and handover programme

Morning Rhiannon,

Thanks. Yes rev B is current, no change to the anchor layout (M16, 12 kN proof load per note 4).

One thing for Craig - note 6 on rev B says the slab is to be dry before anchoring. On our other sites we'd normally want to see RH readings before we drill. Kieran will bring the hygrometer to the walk-down the week before handover.

Regards
Gary

Gary Whitlow | UK Project Director
Quellcrest Robotics Ltd | a Quellcrest Automation company
Unit 7, Tolland Park, Brackenhurst Road, Coventry CV3 4RZ | T 01632 960350
Quellcrest Robotics Ltd is registered in England No. 10482277. This e-mail is confidential and may be legally privileged. If you have received it in error please notify the sender and delete it.

> From: Rhiannon Thorne Sent: 14 March 2024 10:12
> Can you confirm QR-FD-0412 rev B is still the current foundation drawing and the anchor layout

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hasn't changed?

From: Craig Mellor <craig.mellor@varnholt-aero.example>
Sent: 18 March 2024 17:40
To: Rhiannon Thorne
Cc: Dev Anand
Subject: RE: Bay 3 - slab pour and handover programme

Pour done today, all three footprints + walkway, approx 640m2, C32/40 as spec. Cubes taken (7 and 28 day). Under polythene for 7 days wet cure, no curing compound used (per QRL note re contamination). Power floated. FM2 survey booked w/c 8 April.

Craig

From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 26 April 2024 15:31
To: Rhiannon Thorne
Cc: Dev Anand; Kieran Doyle
Subject: Bay 3 walk-down - snag list
Attachments: QRL-B3-SN-01.pdf

Rhiannon

Kieran did the walk-down of Bay 3 this morning with Craig. Snag list attached (QRL-B3-SN-01). Mostly minor:
1. lighting at grid D2-D4 not commissioned
2. compressed air drop at C4 not terminated
3. 125A isolators not labelled (Cells 4-6)
4. Cat 6 drop at Cell 6 position missing
5. walkway barrier at grid B not fixed
6. pallets/debris in Cell 5 footprint
7. Slab RH to be checked before anchors - TBC

Nothing there that should stop handover Monday from our side. Cell 4 is booked on two low loaders for Tues 30/4, 07:00 arrival.

Gary

From: Rhiannon Thorne <rhiannon.thorne@varnholt-aero.example>
Sent: 29 April 2024 09:05
To: Gary Whitlow
Cc: Dev Anand; Craig Mellor; Kieran Doyle
Subject: RE: Bay 3 walk-down - snag list - BAY 3 HANDOVER
Attachments: HC-B3-01 Bay 3 Handover Certificate.pdf; Snags 1-6 closed (photos).zip

Gary,

Please find attached Bay Handover Certificate HC-B3-01 for Bay 3, effective today, 29 April 2024, under Schedule 5 para 3.1.

Snags 1-6 were closed out on Saturday - photos attached. Item 7 is with your team; the slab has now had 42 days and the 28-day cubes came back at 41.5 N/mm2.

Can you confirm Cell 4 is still on for 07:00 tomorrow? Gatehouse has the vehicle regs.

Rhiannon

From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 29 April 2024 11:20

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To: Rhiannon Thorne
Subject: RE: Bay 3 walk-down - snag list - BAY 3 HANDOVER

Received with thanks. Yes Cell 4 arrives tomorrow 07:00, Kieran will meet the drivers. Anchor drilling planned from Thurs 2nd after the trial anchors.

G

Sent from my mobile

From: Dev Anand <dev.anand@varnholt-aero.example>
Sent: 30 April 2024 17:05
To: Rhiannon Thorne
Cc: Craig Mellor
Subject: Bay 3 - call from Gary W re slab moisture

Rhiannon - Gary rang me just after 4pm. Kieran took moisture readings across the Cell 4 footprint this afternoon after Cell 4 was offloaded - he says 86-89% RH and Quellcrest want 75% or less before they'll drill anchors. I told him the slab went down on 18 March and has had six weeks, and that Sch 5 doesn't give a number. He said he'd "speak to Ohio" and come back to us. They're not drilling tomorrow.

Heads up - I think this one is going to run.

Dev

Dev Anand | Procurement Manager | Varnholt Aerostructures Ltd | T 01632 960214 ext 2140

From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 02 May 2024 13:48
To: Rhiannon Thorne
Cc: Dev Anand; Brenda Kowalczyk <bkowalczyk@quellcrest-auto.example>; Kieran Doyle
Subject: Bay 3 - slab not fit for anchoring - notice of non-compliance (Sch 5 para 3.2)

Rhiannon,

Further to Kieran's readings on Tuesday and my call with Dev, we carried out trial anchor pull-out tests at grid C3/C4 (Cell 4 baseplate positions) this morning. 3 of the 5 trial anchors failed below the 12 kN proof load on QR-FD-0412 rev B; the other two held at 12.4 and 13.1 kN. Slab RH on Tuesday was 86-89%.

Schedule 5 para 2.2 requires the slab within the Cell footprints to be dry and suitable for post-installed anchors in accordance with QR-FD-0412 rev B. It is neither. Please treat this email as our notice under Schedule 5 para 3.2 that Bay 3 does not comply with para 2.2(e) and (f).

We cannot start installation of Cell 4 until this is resolved. Cell 4 will stay on its skids in the bay in the meantime. We will revert on programme.

Regards
Gary

Gary Whitlow | UK Project Director | Quellcrest Robotics Ltd | T 01632 960350

From: Brenda Kowalczyk <bkowalczyk@quellcrest-auto.example>
Sent: Thursday, May 2, 2024 10:14 AM
To: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Cc: Rhiannon Thorne; Dev Anand; Kieran Doyle
Subject: RE: Bay 3 - slab not fit for anchoring - notice of non-compliance (Sch 5 para 3.2)

Gary - as I said when you called me 4/30 with Kieran's moisture numbers, and again on our call 05/01, we can't anchor into a wet slab and we are not taking the risk on the pull-outs. Please get the formal contract notice out ASAP (14 days!!) and copy me.

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Rhiannon - our position is that Bay 3 does not meet the Site Readiness Requirements and we will not be in a position to proceed with anchoring until the slab meets spec. Let's get everybody on a call 05/06/2024 9am EST to agree a way forward. I can do 30 mins.

Thanks,
Brenda

Brenda Kowalczyk | VP Programs
Quellcrest Automation Inc. | 4100 Corbel Avenue, Dayton, OH 45414 | 937-555-0143
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From: Rhiannon Thorne <rhiannon.thorne@varnholt-aero.example>
Sent: 03 May 2024 08:30
To: Gary Whitlow; Brenda Kowalczyk
Cc: Dev Anand; Craig Mellor; Kieran Doyle
Subject: RE: Bay 3 - slab not fit for anchoring - notice of non-compliance (Sch 5 para 3.2)

Gary, Brenda,

We do not accept that Bay 3 is non-compliant. Briefly:
- Sch 5 para 2.2 does not specify any RH limit. "Dry" means what it says - no standing water or wet areas - and the slab is dry.
- The slab is C32/40 (28-day cubes 41.5 N/mm2), poured 18 March, i.e. 42 days before handover against the 28 days required.
- QR-FD-0412 rev B note 6 says "slab to be dry" and nothing more. If Quellcrest wanted an RH limit it should have been on the drawing.
- 3 of 5 pull-outs failing points at least as much to the anchor or the installation as to the slab. Please send the test records and confirm the anchor type used.

Craig will get our flooring contractor (Pennick) in to take independent readings and look at the pull-out locations.

Brenda - 05/06 would be Monday 6 May, which is a bank holiday here. Can we do Tuesday 7 May, 2pm UK / 9am Eastern instead?

Varnholt reserves all its rights.

Rhiannon

From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 07 May 2024 16:58
To: Rhiannon Thorne
Cc: Brenda Kowalczyk; Dev Anand; Craig Mellor
Subject: Bay 3 - call today / QR-FD-0412 rev C
Attachments: QR-FD-0412 rev C.pdf; Pull-out test record PT-B3-001.pdf

Rhiannon,

Thanks for the call this afternoon. As discussed:
- Pull-out test record PT-B3-001 attached (M16 mechanical expansion anchors as rev B).
- We have issued QR-FD-0412 rev C, which clarifies note 6 (slab surface RH not to exceed 75% measured by in-situ hygrometer after 72 hrs equilibration) and changes the anchors to M16 resin capsule anchors, which are more tolerant once the RH is down.
- Varnholt to get Pennick to apply a moisture-suppressant primer to the Cell 4-6 footprints. Pennick can start Mon 13th, approx 2 weeks incl. cure.
- Re-test of trial anchors once the primer has cured.

For the avoidance of doubt rev C is a clarification of rev B, not a change.

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Gary

From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 15 May 2024 18:52
To: Rhiannon Thorne
Cc: Dev Anand; Brenda Kowalczyk
Subject: Notice of Buyer Delay - Bay 3 - QRL/VAR/EOT/003
Attachments: QRL-VAR-EOT-003 Notice of Buyer Delay 15.05.24.pdf

Rhiannon,

Please find attached our letter ref. QRL/VAR/EOT/003 of today's date giving notice under clause 11.3 of the Supply and Installation Agreement.

In summary: the Supplier became aware on 2 May 2024, when the trial anchor pull-out tests failed, that Bay 3 did not comply with the Site Readiness Requirements (Schedule 5 para 2.2(e) and (f)). This is a Buyer Delay. It is delaying the installation of Cell 4 and will delay Cells 5 and 6. The anticipated delay to the Planned Acceptance Dates of Cells 4, 5 and 6 is presently estimated at not less than four (4) weeks and will be particularised under clause 11.4 once the slab remediation is complete.

Hard copy to follow.

Regards
Gary

From: Rhiannon Thorne <rhiannon.thorne@varnholt-aero.example>
Sent: 16 May 2024 12:31
To: Gary Whitlow
Cc: Dev Anand; Brenda Kowalczyk; Malcolm Ferris <malcolm.ferris@varnholt-aero.example>
Subject: RE: Notice of Buyer Delay - Bay 3 - QRL/VAR/EOT/003

Gary,

Received. Varnholt rejects the notice:
1. Bay 3 complied with Schedule 5 when it was handed over on 29 April 2024 (HC-B3-01).
2. In any event the notice is out of time under clause 11.3. Quellcrest knew about the moisture readings, and that it would not anchor, by 30 April at the latest - you rang Dev about it that afternoon and Brenda's email of 2 May refers to your call to her on 4/30. Fourteen days from then expired on 14 May.
3. Pennick's primer works are being done to keep the programme moving and without any admission.

Varnholt's rights are reserved, including as to the validity and service of the notice.

Rhiannon

From: Gary Whitlow <g.whitlow@quellcrest-robotics.example>
Sent: 03 June 2024 15:12
To: Rhiannon Thorne
Cc: Dev Anand; Brenda Kowalczyk; Kieran Doyle; Craig Mellor
Subject: Bay 3 - re-test passed - Bay 3 ready from today

Rhiannon,

Re-test of 5 trial resin anchors at C3/C4 this morning after Pennick's primer: 5/5 passed, lowest 14.2 kN. RH across the Cell 4-6 footprints now 72-74%.

We regard Bay 3 as complying with Schedule 5 from today, 3 June 2024. Installation of Cell 4 starts tomorrow. Particulars under clause 11.4 to follow - our current assessment is five (5) weeks for each of Cells 4, 5 and 6 (29 April to 3 June).

Our position on the notice is as set out in QRL/VAR/EOT/003 and is reserved.

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Gary

> From: Rhiannon Thorne Sent: 16 May 2024 12:31
> Received. Varnholt rejects the notice: ...